

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
KHALIF WASHINGTON, CYIRELL  
LOMAX, JAHVON DICKERSON and  
UNIQUE WOODEN, an infant under the age  
of 18 years, by his mother and natural guardian,  
LATASHA WOODEN,  
Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. DAVID TETA  
[SHIELD # 30870], SERGEANT STANLEY  
XENAKIS [SHIELD # 2233], P.O. MICHAEL  
COHEN, and JOHN DOE AND JANE DOE #1-7  
(the names John and Jane Doe being fictitious,  
as the true names are presently unknown),  
Defendants.

Index No.

Date Filed:

Plaintiffs designate  
QUEENS COUNTY  
as the place of trial

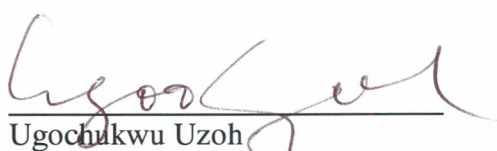
**SUMMONS**

-----X  
To the above named Defendant(s):

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action by filing same at the Queens County Supreme Court building, located at 88-11 Sutphin Blvd, Jamaica, New York 11435, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York  
June 10, 2013

UGO UZOH, P.C.

By:   
Ugochukwu Uzoh  
Attorney for the Plaintiffs  
304 Livingston Street, Suite 2R  
Brooklyn, New York 11217  
(718) 874-6045

To:

THE CITY OF NEW YORK  
LAW DEPARTMENT [CORPORATION COUNSEL]  
100 Church Street  
New York, NY 10007

P.O. DAVID TETA [SHIELD # 30870]  
NYPD-100th Precinct  
92-24 Rockaway Beach Boulevard  
Queens, New York 11693

SERGEANT STANLEY XENAKIS [SHIELD # 2233]  
NYPD-100th Precinct  
92-24 Rockaway Beach Boulevard  
Queens, New York 11693

P.O. MICHAEL COHEN  
NYPD-100th Precinct  
92-24 Rockaway Beach Boulevard  
Queens, New York 11693

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Index No.

**VERIFIED  
COMPLAINT**

JURY DEMAND

Plaintiffs, KHALIF WASHINGTON, CYIRELL LOMAX, JAHVON DICKERSON and  
UNIQUE WOODEN by their attorney, The Law Offices of UGO UZOH, P.C.,  
complaining of the defendants herein, The City of New York, P.O. David Teta [Shield #  
30870], Sergeant Stanley Xenakis [Shield # 2233], P.O. Michael Cohen, and John Doe  
and Jane Doe #1-7 (collectively, "defendants"), respectfully allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the  
plaintiffs under color of statute, ordinance, regulation, custom, and/or to  
redress the deprivation of rights, privileges, and immunities secured to the  
plaintiffs by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the  
Constitution of the United States, and by Title 42 U.S.C. §1983 [and § 1985],  
[and arising under the law and statutes of the City and State of New York].

### COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiffs Khalif Washington, Cyirell Lomax and Jahvon Dickerson timely made and served their respective notices of claim upon the defendants in compliance with N.Y. Gen. Mun. Law § 50-e.<sup>1</sup>
3. At least thirty days have elapsed since the service of aforesaid notices of claim and adjustments or payments thereof have been neglected or refused.
4. This action is commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

### THE PARTIES

5. Plaintiffs are and were at all times material herein residents of the United States and the State of New York.
6. At all relevant times, defendants P.O. David Teta [Shield # 30870], Sergeant Stanley Xenakis [Shield # 2233], P.O. Michael Cohen, and John Doe and Jane Doe #1-7 (hereinafter “defendant officers”) were, upon information and belief, and still are, agents and/or officers employed by defendant City of New York.
7. At all times herein, the defendant officers were acting under the color of their official capacity, and their acts were/are performed under color of the statutes and ordinances of the City of New York and/or the State of New York. Defendant officers were/are the servants, agents, and employees of their co-defendant, the City of New York, such that their acts are imputed to the City of New York.
8. At all relevant times, the defendant City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York, and was/is the employer of the defendant officers, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or at the direction of the defendant City of New York.

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<sup>1</sup> Plaintiff Unique Wooden has commenced proceedings under N.Y. Gen. Mun. Law § 50-e(5), seeking an Order granting leave to serve and file a late Notice of Claim.

9. Plaintiffs are suing the defendant officers in their individual and official capacities.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

10. On or about March 16, 2012, at approximately 6:00 p.m., defendant officers, acting in concert, arrested the plaintiffs without cause at or close to 109-20 Rockaway Beach Boulevard, Queens, New York, and charged each plaintiff with PL 265.03 ‘Criminal possession of a weapon in the second degree’, among other charges.
11. Plaintiffs, however, were not in possession of any weapons and did not commit any offense against the laws of New York City and/or State for which any of the arrests may be lawfully made.
12. Prior to the arrests, plaintiffs were traveling in a taxi to Stella Maris High School located at 140 Beach 112th Street, Queens, New York, to watch and support some of their friends and neighbors who were involved in a basketball game when the defendant officers suddenly pulled over the taxi without cause or reason.
13. After pulling over the taxi, the defendant officers without cause or reason directed the plaintiffs to step out of the taxi.
14. Plaintiffs were then immediately ordered by defendant officers to submit themselves to illegal search, with defendant officers harassing and threatening to harm the plaintiffs.
15. Even though defendant officers did not find anything illegal from their illegal and unlawful search of the plaintiffs, defendant officers nonetheless tightly handcuffed the plaintiffs with their hands placed behind their backs.
16. After falsely arresting the innocent plaintiffs, defendant officers transported the plaintiffs to the NYPD-100th Precinct.
17. Eventually, after detaining the plaintiffs at the precinct for a lengthy period of time, plaintiffs were transported to the Central Booking to await arraignment.
18. While plaintiffs were awaiting arraignment, defendant officers met with prosecutors employed by the Queens County District Attorney’s Office.

19. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that plaintiffs were in possession of a weapon.
20. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against the plaintiffs.
21. That bail was set to secure the release of the plaintiffs except for Unique who was released on his own recognizance.
22. Because plaintiffs could not make bail, Khalif, Cyirell and Jahvon were transported to Rikers Island Correctional Facility, and were incarcerated at said facility for several days following their arrest.
23. The defendant officers continued the malicious prosecution by offering false testimony to the Queens County Grand Jury.
24. On or about March 22, 2012, the false charges levied against Khalif, Cyirell and Unique were summarily dismissed by the Queens County Grand Jury. In addition, on or about November 20, 2012, Jahvon was tried and found not guilty of the false charges levied against him.
25. Further, on or about January 16, 2013, at approximately 1:00 p.m. and 3:30 p.m., respectively, at or close to the intersection of Beach 82nd Street and Rockaway Beach Boulevard, Queens, New York, and at or close to the intersection of Beach 86th Street and Rockaway Beach Boulevard, Queens, New York, respectively, defendants P.O. David Teta [Shield # 30870], and John Doe and Jane Doe unlawfully arrested and detained Khalif, Jahvon and Unique, and subjected said plaintiffs to an illegal and intrusive search, harassing, taunting and threatening to incarcerate said plaintiffs for a lengthy period of time.
26. That defendant P.O. David Teta [Shield # 30870] ceaselessly taunted Jahvon and asked Jahvon on multiple occasions whether he was happy to have successfully defended himself from the false charges levied against him stemming from the March 16, 2012 arrest.
27. That defendant P.O. David Teta [Shield # 30870] did indicate on multiple occasions that he is constantly watching Jahvon and would take steps to arrest and incarcerate Jahvon for a lengthy period of time.

28. That defendants P.O. David Teta [Shield # 30870], and John Doe and Jane Doe had arrested, detained, harassed, taunted and threatened Khalif on at least one other occasion prior to January 16, 2013.
29. Additionally, on or about January 24, 2013, at approximately 2:30 p.m., at or close to the intersection of Beach 86th Street and Rockaway Beach Boulevard, Queens, New York, defendants P.O. David Teta [Shield # 30870], and John Doe and Jane Doe unlawfully arrested and detained Khalif, and subjected said plaintiff to an illegal and intrusive search, harassing, taunting and threatening to incarcerate said plaintiff for a lengthy period of time.
30. On or about January 27, 2013, at approximately 7:00 p.m., at or close to the intersection of Beach 81st Street and Rockaway Beach Boulevard, Queens, New York, defendants P.O. David Teta [Shield # 30870], and John Doe and Jane Doe further taunted and harassed Jahvon and threatened to incarcerate Jahvon for a lengthy period of time.
31. Further, on or about March 28, 2013, at approximately 3:00 p.m., at or close to the intersection of Beach 86th Street and Rockaway Beach Boulevard, Queens, New York, several defendant officers blocked Jahvon' path with approximately four (4) police vehicles and arrested him as he was on his way home from a nearby store.
32. Thereafter, defendant officers transported Jahvon to the NYPD-100th Precinct.
33. Eventually, after detaining Jahvon at the precinct for a lengthy period of time, Jahvon was transported to the Central Booking to await arraignment.
34. On or about March 29, 2013, upon arraignment, the false charge(s) levied against Jahvon was summarily dismissed and Jahvon was released from his unlawful incarceration.
35. That each and every officer who responded to and/or was present at the location of the arrest and/or at the precinct or station house knew and was fully aware that the plaintiffs did not commit any crime or offense, and had a

realistic opportunity to intervene to prevent the harm detailed above from occurring.

36. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
37. As a result of the aforesaid actions by defendant officers, plaintiffs suffered and continue to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, pain and damage, financial losses, and damage to reputation.

FIRST CAUSE OF ACTION: 42 U.S.C. § 1983

38. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. The conduct of defendant officers, as described herein, amounted to false arrest, racial profiling, selective enforcement, pattern of harassment, abuse of authority, excessive use of force, failure to intervene, illegal and unreasonable stop, frisk, search and seizure, conspiracy, denial of freedom of speech, first amendment retaliation, malicious abuse of process, discrimination, fabrication of evidence, denial of equal protection of the laws, denial of right to a fair trial, denial of due process rights and malicious prosecution.
40. Such conduct violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
41. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE AND MUNICIPAL POLICY

42. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 41 of this complaint as though fully set forth herein.

43. Defendant City of New York, acting through the New York Police Department, had actual and/or de facto policies, practices, customs and/or usages of racial profiling, failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, stop, frisk, search and seizure, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.
44. Additionally, defendant City of New York, acting through District Attorney Richard A. Brown and the Office of the District Attorney of the Queens County, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise, and discipline its Assistant District Attorneys and employees concerning correct practices in conducting investigations, interviewing witnesses and informants, assessing the credibility of witnesses and informants, the initiation and/or prosecution of criminal actions, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and the duty and/or obligation of candor toward the court.
45. Defendant City of New York, acting through aforesaid NYPD and District Attorney, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiffs, who are black, on the pretext that they were involved in some crime or offense.
46. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
47. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the Southern District of New York observed that the City

of New York had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.

48. In *Ligon v. City of New York*, 12 Civ. 2274, 2013 U.S. Dist. LEXIS 22383, at \*9-\*10 (S.D.N.Y. Feb. 14, 2013), the Court determined that the City of New York, acting through the NYPD, engages in illegal and unreasonable stop, frisk, search and seizure of blacks and other minorities. *See also Davis v. City of New York*, 10 Civ. 0699, 2013 U.S. Dist. LEXIS 45601 (S.D.N.Y. March 28, 2013) (same).
49. Additionally, NYPD Police Officer Michael Carsey was recently convicted of felonies for lying under oath and falsifying information while applying for a search warrant.
50. Police Officer Carsey's supervisor, Sergeant William Eiseman, had earlier admitted to fabricating facts to justify searching vehicles and homes for cocaine, marijuana and guns, filing false information to obtain search warrants and performing illegal searches of vehicles and homes. That Sergeant Eiseman admitted to perjury and fabricating evidence against innocent persons that he falsely arrested and charged with various crimes, and also admitted to training numerous young police officers to commit similar crimes and/or offenses.
51. In addition, in or about October 2011, Detective Stephen Anderson testified against Detective Jason Arbeeney, a veteran of the NYPD. That Detective Anderson testified that, among other things, it is a common practice within the NYPD to plant evidence on innocent persons in order to meet arrest quotas. Detective Anderson referred to the practice of planting evidence on innocent persons as "attaching bodies" to the evidence. According to Detective Anderson, this practice "was something I was seeing a lot of, whether it was from supervisors or undercovers and even investigators."
52. Regarding the issue of arrest quotas, Detective Anderson confirmed that the NYPD requires officers to fill quotas, and testified that even as a detective

“you still have a number [of arrests] to reach while you are in the narcotics division.”

53. Recently, a jury determined that officers of the NYPD are permitted, as a policy and/or practice, to fill their arrest quotas by making unlawful arrests. *See Bryant v. City of New York*, Index No. 22011/07 (Sup. Ct. County of Kings Feb. 18, 2011).
54. Prior to his testimony, Detective Anderson and his partner provided false testimony in court claiming that they purchased cocaine from certain individuals who as surveillance video later confirmed did not have any sort of contact or communication with Detective Anderson and his partner during the time period that Detective Anderson and his partner claimed to have purchased the controlled substances and/or illegal drugs.
55. That Detective Arbeeney was subsequently convicted of planting evidence on a woman and her boyfriend, and was convicted of the charges against him including official misconduct, offering a false instrument for filing and falsifying business records.
56. That the New York Supreme Court, County of Kings, Criminal Term, Gustin L. Reichbach, J., determined that the NYPD has a system of flawed procedures that caused Detective Arbeeney’s unlawful actions. Judge Reichbach further determined that the NYPD has a widespread culture of corruption and has adopted a “cowboy culture” and practice which he described as “[a]nything goes . . . .” That Judge Reichbach expressed shock at what he described as “the seeming pervasive scope of misconduct [and even worse] . . . the seeming casualness by which such conduct is employed.”
57. Further, in or about 2008, the New York Supreme Court, County of Kings, Criminal Term, Albert Tomei, J., determined at a Mapp hearing in *People v. Simms*, Indictment No. 11263/07, which was held on or about September 9, 2008, that the police officers involved in the arrest in that matter are “not credible” and that the police officers’ “testimony is so obviously fabricated . . . to avoid any Constitutional objections the defendant may have . . . and that

[any] property taken . . . is to be suppressed because it was the product of an unlawful arrest and search and seizure.”

58. In addition to the instances of police misconduct described above, several officers of the NYPD -- including but not limited to Detective Christopher Perino, Police Officer Michael Daragjati, Police Officer Henry Tavarez, Police Officer William Masso, Detective Oscar Sandino, Detective Sean Johnstone, Sergeant Michael Arenella, Sergeant Jerry Bowens, Police Officer Michael Pena, Police Officer Nicholas Mina, Detective Kevin Spellman, Sergeant Bobby Hadid and Police Officer Admir Kacamakovic -- have recently been convicted of various similar crimes as those described herein including but not limited to falsifying police reports, perjury, corruption, robbery, gun running, drug dealing, prostitution, theft and assault. Former NYPD Commissioner Bernard Kerik was also recently convicted of corruption and similar crimes as those described herein.
59. In addition to the named individual defendants, several officers of the NYPD routinely make unlawful arrests charging innocent persons with various crimes which are usually dismissed for lack of evidence.
60. That defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.
61. The actions of defendants, acting under color of State law, deprived plaintiffs of their due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in their persons and properties, to be free from abuse of process, the excessive use of force and the right to due process.

62. By these actions, defendants have deprived plaintiffs of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION: 42 U.S.C. § 1985

63. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 62 of this complaint as though fully set forth herein.
64. In an effort to find fault to use against the plaintiffs, defendant officers conspired among themselves and conspired with other individuals to deprive plaintiffs of their constitutional rights secured by 42 U.S.C. § 1983, and by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to United States Constitution, because of their race, ancestry and/or ethnicity, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
65. In light of the foregoing therefore, defendant officers engaged in a conspiracy designed to deprive the plaintiffs of their constitutional and federal rights in violation of 42 U.S.C. § 1985.
66. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages hereinbefore stated.

FOURTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12

67. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 66 of this complaint as though fully set forth herein.
68. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiffs without probable cause or reasonable suspicion, and harassing and assaulting them and depriving the plaintiffs of due process and equal protection of laws, defendants deprived plaintiffs of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11

(prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

69. In addition, defendant officers conspired among themselves and conspired with other individuals to deprive the plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
70. Defendant officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. Defendant officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. Defendant officers acted willfully, knowingly, and with the specific intent to deprive the plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
71. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiffs' state constitutional rights.

**FIFTH CAUSE OF ACTION: ASSAULT AND BATTERY**

72. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 71 of this complaint as though fully set forth herein.
73. The conduct of defendant officers, as described herein, amounted to assault and battery.
74. By reason of and as a consequence of the assault, plaintiffs suffered and continue to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, pain and damage, and damage to reputation.
75. Upon information and belief, defendant City of New York had sufficiently specific knowledge or notice of defendant officers' propensity for acts complained of herein and that their acts could reasonably have been anticipated. However, defendant City of New York failed to take any

appropriate actions to assure plaintiffs' safety and security and failed to protect and/or safeguard plaintiffs' interests.

76. That defendant City of New York's failure to assure plaintiffs' safety and security was a proximate cause of plaintiffs' injuries.

SIXTH CAUSE OF ACTION: OTHER NEW YORK TORTS

77. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 76 of this complaint as though fully set forth herein.

78. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment, illegal and unreasonable stop, frisk, search and seizure, negligence, defamation, conspiracy, special injury, malicious abuse of process, harassment, abuse of power, trespass, fraud and malicious prosecution.

79. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: NEGLIGENT & INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

80. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 79 of this complaint as though fully set forth herein.

81. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to the plaintiffs.

82. Plaintiffs' emotional distress has damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the assault, detention and imprisonment by defendants.

83. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES

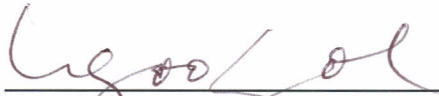
84. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 83 of this complaint as though fully set forth herein.
85. Upon information and belief, defendant City of New York, through its various agencies and departments including the defendants in this action, owed a duty of care to the plaintiffs to prevent the physical and mental abuse sustained by the plaintiffs.
86. Upon information and belief, defendant City of New York, through its various agencies and departments including the defendants in this action owed a duty of care to the plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to the plaintiffs or to those in a like situation would probably result from such conduct described herein.
87. Upon information and belief, defendant City of New York, knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
88. Upon information and belief, defendant City of New York's negligence in hiring and retaining the defendants proximately caused plaintiffs' injuries.
89. Upon information and belief, because of defendant City of New York's negligent hiring and retention of defendant officers, plaintiffs incurred and sustained significant and lasting injuries.

WHEREFORE, plaintiffs respectfully pray judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiffs' reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

JUNE 10, 2015

UGO UZOH, P.C.



By: Ugochukwu Uzoh (UU-9076)  
Attorney for the Plaintiffs  
304 Livingston Street, Suite 2R  
Brooklyn, NY 11217  
(718) 874-6045

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

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UNIQUE WOODEN, an infant under the age  
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(the names John and Jane Doe being fictitious,  
as the true names are presently unknown),

Defendants.

-----X  
Ugochukwu Uzoh, an attorney duly admitted to practice law in the State of New York,  
makes the following affirmation under the penalty of perjury:

I am of the firm of UGO UZOH, P.C., the attorneys of record for the plaintiffs.

I have read the foregoing Complaint and know the contents thereof, the same is true of  
my own knowledge except as to matters therein stated to be alleged on information and belief  
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by the plaintiffs because plaintiffs are not  
presently in Kings County, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge  
are correspondence had with the said plaintiffs, information contained in the said plaintiffs'  
file(s), which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Brooklyn, New York  
June 10, 2013

  
Ugochukwu Uzoh

**THE SUPREME COURT OF THE  
STATE OF NEW YORK, QUEENS COUNTY**

AT AN IAS PART \_\_\_\_ OF THE SUPREME COURT  
OF THE STATE OF NEW YORK, QUEENS COUNTY,  
BOROUGH OF QUEENS, CITY OF NEW YORK  
ON THE \_\_\_\_ DAY OF \_\_\_\_, 20\_\_

KHALIF WASHINGTON, CYIRELL  
LOMAX, JAHVON DICKERSON and  
UNIQUE WOODEN, an infant under  
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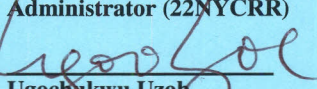
-against-

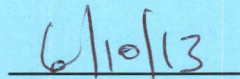
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(the names John and Jane Doe being  
fictitious, as the true names are presently  
unknown),

Defendants.

**SUMMONS  
&  
VERIFIED COMPLAINT**

**CERTIFICATION:** I hereby certify that all papers that I have  
served, filed or submitted to the court in the within action are not  
frivolous pursuant to Sec. 130-1.1a of the Rules of the Chief  
Administrator (22NYCRR)

  
Ugochukwu Uzoh

  
Dated

Ugo Uzoh, P.C.

Attorneys for plaintiff  
Office & Post Office Address

**304 LIVINGSTON STREET, SUITE 2R  
BROOKLYN, NY 11217**

**TEL: (718) 874-6045**